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TAB 8



Board of Education Report

File #: ROC-017-23/24, **Version:** 1

Report of Correspondence

BOARD OF EDUCATION OF THE CITY OF LOS ANGELES
Governing Board of the Los Angeles Unified School District

June 25, 2024

REPORT OF CORRESPONDENCE

The following correspondence addressed to the Board of Education is submitted with the recommended Disposition, “Refer to Superintendent for referral to Office of the General Counsel to take all steps necessary to protect the interests of the Board of Education, including assignment to outside counsel; Controller to draw warrants in such amounts as may be necessary for the payment of costs and fees upon invoices as approved by the Office of the General Counsel”:

FROM	LEGAL ACTION
1. Carrillo Law Firm	Complaint for Damages for Negligence; Case No. 24STCV12527; Superior Court of the State of California, for the County of Los Angeles; John A.J. Doe an individual, Plaintiff v. Los Angeles Unified School District; and Does 1-40, Defendants.
2. Carrillo Law Firm, LLP	Summons & Verified Petition for Writ of Mandate (California Public Records Act); Complaint for Preliminary Injunction and Declaratory Relief for Violations of the California Public Records Act; Case No. 24STCP01608; Superior Court of California, County of Los Angeles; Carrillo Law Firm, LLP, a California Limited Liability Partnership, Plaintiff v. Los Angeles Unified School District, a California Local Public Entity, Defendant.
3. Downtown L.A. Law Group	Summons & Complaint for Damages for: 1. Discrimination in Violation of Gov't Code §§12940 Et Seq.; 2. Failure to Prevent Discrimination in Violation of Gov't Code §§12940(k); 3. Failure to Provide Reasonable Accommodations in Violation of Gov't Code §§12940 Et Seq.; 4. Failure to Engage in a Good Faith Interactive Process in Violation of Gov't Code §§12940 Et Seq. and; 5. For Declaratory Judgement; Case No. 24STCV12254; Superior Court of the State of California, County of Los Angeles; Carolyn Elaine Johnson, an individual, Plaintiff v. Los Angeles Unified School District, and Does 1-20, Inclusive Defendants.
4. Downtown LA Law Group	Summons & Complanit: 1. Premises Liability; Case No. 24LBCV00704; Superior Court of California, County of Los Angeles; Rodrigo Lara Jimenez, a minor, by and through his Guardian ad Litem Leticia Lara, Plaintiff v. Los Angeles Unified School District, a public entity, et al., Defendant.

5. Law Office of Samer Habbas & Associates, PC
Summons & Complaint for Damages for 1. Negligence and 2. Statutory Liability Pursuant to Cal. Gov. Code § 815.2; Case No. 24STCV08006; Superior Court of the State of California, for the County of Los Angeles; Jordan Larose, a minor by and through his guardian ad litem, Erica Charles, Plaintiff v. Los Angeles Unified School District, et al., Defendants.

6. Law Office of Shakeer Rahman
Law Office Thomas B. Harvey
Summons & Verified Petition for Writ of Mandate, Exhibits A-B; Case No. 24STCP01821; Superior Court of the State of California, County of Los Angeles; Stop LAPD Spying Coalition and Students Deserve, Petitioners v. Los Angeles Unified School District, Respondent.

7. Law Offices of Allison M. Schulman
Summons & Complaint for Damages for: 1) Discrimination in Violation of Gov't Code §§12940 Et Seq.; 2) Retaliation in Violation of Gov't Code §§12940 Et Seq.; 3) Failure to Provide Reasonable accommodation in Violation of Gov't Code §§12940 Et Seq.; 4) Failure to Engage in a Good Faith Interactive Process in Violation of Gov't Code §§12940 Et Seq.; 5) Failure to Prevent Discrimination and Retaliation in Violation of Gov't Code §§12940(k); and 6) For Declaratory Judgment.; Case No. 24STCV07157; Superior Court of California, For the County of Los Angeles; Alison Howerton, Plaintiff v. Los Angeles Unified School District; and Does 1-100, Inclusive, Defendants.

8. Law Offices of Brian Weinberger
Summons & Complaint: 1. Motor Vehicle 2. General Negligence; Case No. 24STCV09762; Superior Court of California, County of Los Angeles; Wesley Rowell and Silvia Barroso, Plaintiffs v. Los Angeles Unified School District, and Does 1 to 25, inclusive, Defendant.

9. Law Offices of Jesus Eduardo Arias
Summons & Complaint for Damages: 1. Negligence – Wrongful Death 2. Employers Negligence, A) Negligent Hiring b) Negligent Training C) Negligent Supervision; Case No. 24STCV11864; Superior Court of the State of California, County of Los Angeles; Ana Jimenez, Plaintiff v. Los Angeles Unified School District, et al., Defendants.

10. M.R. Parker Law
Summons and Complaint for Damages; Case No. 24STCV02801; Superior Court of the State of California, for the County of Los Angeles; Isaiah McGrath, by and through his GAL Gloria Johnson, Plaintiff v. Los Angeles Unified School District; and Does 1-50, Defendants.

11. Manly Stewart Finaldi
Complaint for Damages for: 1) Intentional Infliction of Emotional Distress; 2) Negligence; 3) Negligent Supervision; 4) Negligent Retention/Hiring; 5) Negligent Failure to Warn, Train or Educate; 6) Breach of Fiduciary Duty; 7) Constructive Fraud (Civil Code §1573); 8) Sexual Battery; 9) Sexual Assault.; Case No. 24STCV11153; Superior Court of the State of California, County of Los Angeles, Central District; Jane MG Doe, Plaintiff v. Los Angeles Unified School District; et al.; and Does 1-50, Defendants.
12. Samini Block APC
Summons & Complaint for 1. Sexual Battery of a minor 2. Negligent Hiring, Supervision, and Retention 3. Negligence 4. Failure to Supervise Minor 5. Failure to Report Suspected Child Abuse 6. Intentional Infliction of Emotional Distress; Case No. 24CHCV01506; Superior Court of the State of California, for the County of Los Angeles; John Doe, an individual minor, by and through his parent and legal guardian, Jane Roe, Plaintiff v. Los Angeles Unified School District, a public school district; Evelyn Silva, an individual; and Does 1-10, inclusive, Defendants.
13. Seber Bulger LLP
Summons & Complaint for Damages for: 1. Negligence 2. Dangerous Condition of Public Property 3. Premises Liability; Case No. 24CMCV00132; Superior Court for the State of California, For the County of Los Angeles; G.S., a minor, by and through GAL, R.S., Plaintiff v. Los Angeles Unified School District, et al., and Does 1-20, Defendants.
14. The Law Offices of Kaplan & Boldy
Summons and Complaint for Damages; Case No. 23STCV27013; Superior Court of the State of California, for the County of Los Angeles; Oak River Insurance Company, as administered by Berkshire Hathaway Homestate Companies, Plaintiff v. Los Angeles Unified School District; and Does 1-25, Defendants.
15. Westside Injury Lawyers
Summons & Complaint for Damages for: 1) Premise Liability; Case No. 24VECV00930; Superior Court of California, For the County of Los Angeles; Alana Lara, by and through her GAL Darling Gonzalez, Plaintiff v. Los Angeles Unified School District; and Does 1-10, Inclusive, Defendants.
16. Zavala Law Offices, Inc.
Summons & Complaint for Damages: 1) Discrimination Based on Age; 2) Discrimination Based on Disability; 3) Harassment; 4) Retaliation; 5) Failure to Engage in the Interactive Process in Violation of FEHA; 6) Failure to Provide Reasonable Accommodation in Violation of FEHA; 7) Failure to Prevent Discrimination, Harassment, and Retaliation in Violation of the FEHA; 8) California Family

Rights Act Violations; Plaintiff's Peremptory Challenge;
Case No. 24STCV13261; Superior Court of the State of
California, County of Los Angeles; Soheir Rizk, an
individual, Plaintiff v. Los Angeles Unified School District,
a California Public Entity, and Does 1 through 10, inclusive,
Defendants.

The recommended disposition of the following item is “Refer to Superintendent for referral to the Office of the Risk Management and Insurance Services”:

<u>No.</u>	<u>Received From</u>	<u>Type of Damage</u>	<u>Claimant</u>	<u>Date of Damage</u>
17.	Mikayla Mathews PMP Management	Damages	Avila at Porter Ranch HOA	03-21-24
18.	California Accident Firm Monica Deleen	Damages	Camila I. Nevarez-Zamora	05-07-24 (2 Rec'd)
19.	Salusky Law Group Anna Salusky	Damages	Charly Marie Joyce Hodges by GAL Taylor Marie Campbell	On or about 09-14-23, 11-16-23, 11-28-23
20.	Christopher Glupker	Damages	Chris Glupker on behalf of Kian Glupker	“8/23-3/24”
21.	Cynthia Diaz	Damages	Cynthia Diaz	04-19-24
22.	Dr. Shawn C. Fornari	Damages	Dalton G. Fornari	01-24-24
23.	Anna Salusky Salusky Law Group	Damages	Diego Alfonso Conde Covarrubias by GAL Danielle Clement	11-28-23
24.	Anna Salusky Salusky Law Group	Damages	Diego Alfonso Conde Covarrubias by GAL Danielle Clement	11-28-23
25.	Justin Lubin Harding Law	Damages	Dylan Lubin	03-05-24
26.	Gabby Carlos	Damages	Gabby Carlos	05-15-24
27.	Marianna Oustinovskaya CD Law	Damages	George Kirellos	04-22-24 & 04-26-24

28.	Hector Padilla	Damages	Hector Padilla	05-16-24
29.	Jeffrey Valdez	Damages	Jeffrey Valdez	03-15-24
30.	California Legal Counsel	Damages	Jenny Chavez	04-22-24
31.	Michael S. Yu MY Law Corporation	Damages	Ka Man Carman Chu	03-06-24
32.	Tiffany Rome	Damages	Kennedy Storms	01-17-24
33.	David J. Duchrow Law Office of David J. Duchrow	Damages	La Jonne C. Jessie	“05-24-24 and continuing”
34.	Dorin Varon	Damages	Liyam Varon	05-13-24
35.	Maria Donora Torres Madrid	Damages	Maria Donora Torres Madrid	04-25-24
36.	Kamelia Jalilvand Jalilvand Law	Damages	Maximiliano Jimenez through his GAL Arlette Raya	05-09-24
37.	Nadar Jandaghi	Damages	Nadar Jandaghi	“Sept 2022 to present ongoing”
38.	California Accident Firm	Damages	Natalie Zambran	01-25-24
39.	Nader Jandaghi	Damages	Niki Darya Jandaghi	“Sept 2021 to present ongoing”
40.	Ramiro Contreras Gonzalez	Damages	Ramiro Contreras Gonzalez	04-22-24

41.	Raul Guzman	Damages	Raul and Luz Ma Guzman	“Since year 22-23 to date”
42.	Stephanie Jeanette Evins	Damages	Rein Jeanise Suvain	11-15-23
43.	Roberto Lumber	Damages	Roberto Lumber	06-06-24
44.	Mary L. Caruso Wilshire Law Firm	Damages	Rodolfo De Los Santos	01-13-24
45.	Shawna S. Nazari Nazari Law	Damages	Sarah A. Castro	05-01-24
46.	Daniel Yesayan LA Attorneys, PC	Damages	Shaunda Monique Ford	01-30-24
47.	Shekar Panbehchi	Damages	Shekar Sugar Panbehchi	“Sept 2022 to present ongoing”
48.	Gricelda Montañez Rivera	Damages	Steven Meza	04-30-24
49.	David Voss Jr. Law Offices of David C. Voss	Damages	The EduCare Foundation c/o Jill Jacobson	09-05-23
50.	Jazmine Gomez Downtown Law Group	Damages	Vincent Martinez	12-12-23
51.	Sergio F. Benedetto Law Offices of Sergio F. Benedetto	Damages	Wendy Y. Servellon Vasquez	03-06-24
52.	Anjana Ramachandran	Vehicle Damages	Anjana Ramachandran	03-15-24
53.	Kelly Goldner 21st Century Insurance Company	Vehicle Damages	Benjamin Liou	03-19-24

54.	Bradley Levinson	Vehicle Damages	Bradley Levinson	05-21-24
55.	Caesar Calucag	Vehicle Damages	Caesar Calucag	05-13-24
56.	Carlos Chavelas	Vehicle Damages	Carlos Chavelas	03-07-24
57.	Clarence Stanley	Vehicle Damages	Clarence Stanley	03-13-24
58.	Crystal Coleman	Vehicle Damages	Crystal Coleman	05-28-24
59.	Nadine Elble Geico Insurance	Vehicle Damages	Ellison C Say	04-02-24
60.	Joana Urias Automobile Club of Southern California	Vehicle Damages	Emily Lopez/ Beatriz Ochoa	02-27-24
61.	Eric Stemp	Vehicle Damages	Eric Stemp	01-12-24
62.	George Rey	Vehicle Damages	George Rey	06-04-24
63.	Nicholas Erdman Liberty Mutual/Safeco Insurance	Vehicle Damages	Gloria Lopez	01-18-24
64.	Greg Kossoff	Vehicle Damages	Greg Kossoff	05-08-24
65.	Irene Eguizabal Ruiz	Vehicle Damages	Irene Eguizabal Ruiz	05-24-24
66.	Isabel Juarez	Vehicle Damages	Isabel Juarez	06-07-24

67.	Juan Pablo Cervantes	Vehicle Damages	Juan Pablo Cervantes	06-04-24
68.	Keianya Townes	Vehicle Damages	Keianya Townes	05-24-24
69.	Kyoung Park	Vehicle Damages	Kyoung Park	05-09-24
70.	Loren M. Vivero	Vehicle Damages	Loren M. Vivero	02-22-24
71.	Nazeli Fndryan-Abarca	Vehicle Damages	Nazeli Fndryan-Abarca	05-08-24
72.	Stephanie M. Garcia	Vehicle Damages	Stephanie M. Garcia	04-10-24
73.	Sunny Hwang	Vehicle Damages	Sunny Hwang	05-13-24
74.	Tova Schilling	Vehicle Damages	Tova Schilling	05-15-24
75.	Vincent Chavez	Vehicle Damages	Vincent Chavez	03-14-24

TAB 9



Board of Education Report

File #: Rep-359-23/24, **Version:** 1

Approval of Routine Personnel Action

June 25, 2024

Human Resources Division

Action Proposed:

Approve the following reimbursement agreement (zero-value contract) for the 2024-2025 school year:

<u>Agency</u>	<u>Agreement Number</u>
United Teachers Los Angeles (UTLA)	HR 24/25-015

The requesting agency will reimburse the District for all costs for salary and benefits for the temporary loan of the employee to the agency during the period of the detached service assignment.

Background:

This type of report is normally presented at each Board Meeting for approval of routine personnel actions.

Expected Outcomes:

Not applicable

Board Options and Consequences:

If the Board approves this zero-value contract, the employee will work with UTLA for a year and then return to a teaching assignment.

Policy Implications:

Not applicable

Budget Impact:

Cost Neutral

Student Impact:

Not applicable

Equity Impact:

Not applicable

Issues and Analysis:

Detached service is a zero-value contract and therefore no issues are implied.

Attachments:

Not applicable

Informatives:

Reimbursement Agreement (Zero-Value Contract)

Submitted:

06/18/24

RESPECTFULLY SUBMITTED:


ALBERTO M. CARVALHO
Superintendent

APPROVED & PRESENTED BY:


FRANCISCO J. SERRATO
Chief Human Resources Officer
Human Resources Division

REVIEWED BY:


DEVORA NAVERA REED
General Counsel

APPROVED BY:


PEDRO SALCIDO
Deputy Superintendent
Business Services & Operations

☒ Approved as to form.

REVIEWED BY:


NOLBERTO DELGADILLO
Deputy Chief Business Officer, Finance

CERTIFIED BY:


DAVID GRECO
Personnel Director
Personnel Commission

☒ Approved as to budget impact statement.

INTEROFFICE CORRESPONDENCE
Los Angeles Unified School District
Human Resources Division

INFORMATIVE

DATE: June 25, 2024

TO: Members, Board of Education
Alberto M. Carvalho, Superintendent

FROM: Francisco J. Serrato, Ed.D.
Chief Human Resources Officer

SUBJECT: REIMBURSEMENT AGREEMENT (ZERO-VALUE CONTRACT)

This informative provides information regarding the reimbursement agreement for a detached service assignment recommended for approval for the 2024-2025 school year.

<u>Agency</u>	<u>Agreement Number</u>	<u>Employee</u>	<u>Reimbursable Salary and Benefits for 2024-2025</u>	<u>Position serving for the Agency</u>
United Teachers Los Angeles (UTLA)	HR 24/25-015	Denisha Jordan	\$162,043	California Alliance for Community Schools Organizer

The District will benefit when the employee returns to the District and utilizes the knowledge, strategies, and leadership skills gained during the Detached Service assignment.

If you have any questions or concerns, please feel free to e-mail me.

Attachments

c: Kristen K. Murphy
Pedro Salcido
Devora Navera Reed
Karla V. Estrada
Jaime Torrens
Amanda Wherritt
Patricia Chambers
Pia Sadapatmal
Sasha Lopez
Carol Delgado
Michael McLean
Maria Voigt

INTEROFFICE CORRESPONDENCE

Los Angeles Unified School District
Human Resources Division

TO: All Persons Listed Below

DATE: June 17, 2024

FROM: Maria Voigt, Administrator (w)
Human Resources Division

**SUBJECT: REQUEST TO PROCESS AN ASSIGNMENT FOR A DETACHED SERVICE
REIMBURSEMENT AGREEMENT WITH UNITED TEACHERS LOS ANGELES (UTLA),
2024-2025 (NEW)**

This is to request that an assignment be processed between the District and United Teachers Los Angeles (UTLA) to provide a full-time Detached Service assignment for the following employee:

Employee Name	E.N.	Salary	Paid Days	Job Code
Denisha Jordan	766452	Preparation (T)	204 days (C8)	13400705

The effective period of the Detached Service assignment is July 1, 2024 through June 30, 2025. During this time, Ms. Jordan will be released from her full-time District assignment to serve as California Alliance for Community Schools Organizer.

Ms. Jordan's full salary and benefits will continue to be paid by the District, and UTLA will reimburse the District for all salary and benefits costs for the period specified above, including a service fee. Reimbursement will include health and welfare, retirement, unemployment insurance, and worker's compensation.

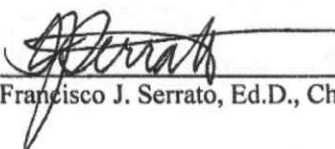
Budget Division will establish revenue and budget authority to set-up the position using fund 010, program code 10700 – Employees Loaned to Other Agencies. General Accounting will process the appropriate accounting lines for billing and payment procedures.

Ms. Jordan will be time reported from the Personnel Services and Research Branch (Division 53, Location 0599) during the period on loan.

For A basis employees, all vacation hours accrued during the period of the Detached Service assignment must be used in full prior to the end of the assignment. The District is not liable for any vacation hours accrued and not used during the Detached Service assignment.

The service fee is approximate and subject to adjustment. The employee listed above will be subject to any salary adjustments/furlough days that may be approved by the Board and/or Superintendent for employees for the 2024-2025 school year.

Please e-mail me at maria.voigt@lausd.net if clarification is needed.

Approved: 
Francisco J. Serrato, Ed.D., Chief Human Resources Officer

6/17/2024
Date

MV/jrt

Attachments: Letter of Agreement, HR Form 1065, Cost Estimate

c: F. Serrato
L. Hannah
M. Salazar
M. Garza

A. Carrillo
T. Chen
J. Torralba
A. Cruz

K. Ou
C. Crawford
E. Mirano
R. Ta

C. Coney, UTLA
D. Manuel, UTLA
D. Jordan

LOS ANGELES UNIFIED SCHOOL DISTRICT

LETTER OF AGREEMENT
For Temporary Loan of Employee

The United Teachers Los Angeles requests the temporary loan of services
(Requesting Agency)
of Denisha Jordan 766452 commencing effective
(Employee) (Employee No.)
July 1, 2024 through June 30, 2025

The employee's full salary and benefits will continue to be paid by the District, and the requesting agency (Agency) will reimburse the District for all such costs, for the period specified above. Reimbursement will include a minimum 3% annual service fee and any increases or decreases during the period of the agreement arising from increases or decreases in employee salary, benefits, and/or number of work days. The employee listed above will be subject to any salary adjustments that may be approved by the Board and/or Superintendent for the period specified above. The employee is entitled to all leaves, holidays, and vacation days which fall within the employee's assignment basis, for which eligible. District shall submit to Agency itemized invoices indicating the service fee and benefit payments to be reimbursed, such reimbursement to be due upon submission of the invoice.

For A Basis employees, all vacation hours earned during the period on Organization Leave or Detached Service must be used prior to completion of that assignment and return to the District. The District will not assume liability for any unused vacation balance earned during the Organization Leave/Detached Service.

This agreement shall not be terminated prior to the ending date specified above without the mutual written agreement of both the District and the Agency.

Agency shall provide the District with a written attendance report at the end of each pay period.

District shall notify Agency of any changes to employee's salary or benefits.

Length of base work year for reimbursement (No. of Paid Days): 204(C) ☒ 221(B) ☐ 234(E) ☐ 261(A) ☐
Work hours per day: 6 hours ☐ 8 hours ☒
No. of additional paid days, if applicable: N/A

Salary for reimbursement includes coordinating differential, if eligible: Yes ☐ No ☐

The employee will be released from the employee's District position and placed on a Detached Service/Paid Organization Leave assignment to serve as CA Alliance for Community Schools Organizer (title) and perform services for Agency as described in the Statement of Duties on page 2. While on Detached Service/Paid Organization Leave, the employee will maintain all required credentials and certifications valid, as required of the position from which on leave.

Name of Requesting Agency: United Teachers Los Angeles

Address 3303 Wilshire Blvd., 10th Floor

City Los Angeles Zip 90010

Contact Person Cheryl Coney Tel 213-368-6205

Email cconey@utla.net Fax

Payroll Time Reporter Jessie Carino Tel 213-368-6226

Email jcarino@utla.net Fax

Address for Time Reporter 3303 Wilshire Blvd., 10th Floor

City Los Angeles Zip 90010